BRENDAN NGEHSI NEWANFORBI
Plaintiff, In Propria Persona
1455 Cat Tail Drive
Stockton, CA 95204
Telephone: (209) 801-4442
E-mail: bnn.cdl@gmail.com

UNITED STATES DISTRICT COURT

NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI, Plaintiff, v. **SHANNON SMITH, LCSW, Chief Executive Officer and Founder of HOPE Program, an individual; and HOPE PSYCHOTHERAPY, INC., d/b/a HOPE PROGRAM, a California corporation,** Defendants.	Case No. 3:26-cv-07504-LJC **PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM)** Set No.: 1 (Fed. R. Civ. P. 26, 34) Judge: Hon. Lisa J. Cisneros

PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM)

TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM) AND ITS ATTORNEYS OF RECORD:

Under Federal Rules of Civil Procedure 26 and 34, Plaintiff Brendan Ngehsi Newanforbi requests that Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program) produce the documents described below for inspection and copying, and serve a written response on Plaintiff within thirty (30) days after service.

INSTRUCTIONS

1. Respond in writing within 30 days after service (Fed. R. Civ. P. 34(b)(2)(A)) and produce at a reasonable time and place agreed by the parties, or by secure electronic transfer.

2. For each objection, state whether any responsive materials are being withheld on the basis of that objection (Rule 34(b)(2)(C)), and permit inspection of the rest.

3. Produce documents as kept in the usual course of business or organized and labeled to correspond to the request (Rule 34(b)(2)(E)(i)), with Bates numbers.

4. Produce ESI in native format with metadata intact for email, spreadsheets, EHR exports, audit logs, and recordings; other ESI may be produced as searchable PDF. Produce recordings in their original file format.

5. These requests reach documents in your possession, custody, or control, including documents you have the legal right to obtain on demand from employees, contractors, and vendors (including EHR, email, and cloud-storage vendors), and work-related messages on personal devices or accounts.

6. Withhold nothing on a claim of privilege without serving a privilege log that meets Rule 26(b)(5)(A) with your written response.

7. Confidential material may be designated under the Stipulated Protective Order once entered; confidentiality is not a basis to withhold. Records of other clients may be produced de-identified where a request so states.

8. If responsive material no longer exists, identify what existed, its former custodian, when

and why it became unavailable, and any available copy.

9. Preserve parent-attachment relationships and produce metadata sufficient to identify the author, custodian, and creation, modification, and transmission dates of each item.

10. Where third-party information is protected, redact it rather than withhold an otherwise responsive document.

11. These requests are continuing to the extent required by Rule 26(e).

DEFINITIONS

"YOU" and "YOUR" means Defendant HOPE as defined below.

"PLAINTIFF" means Brendan Ngehsi Newanforbi.

"HOPE" means Defendant HOPE Psychotherapy, Inc. (d/b/a HOPE Program, appearing as HOPE Program, A Licensed Clinical Social Worker Professional Corporation), including its officers, employees, and agents, and any management or records contractor acting for it.

"SMITH" means Defendant Shannon Smith, LCSW.

"CDCR" means the California Department of Corrections and Rehabilitation, including its Division of Adult Parole Operations (DAPO) and any parole agent or supervisor.

"CTM" means a Containment Team Meeting or similar case conference among a treatment provider, CDCR, and/or a polygraph examiner concerning a parolee.

"COMPLETION DETERMINATION" means any recommendation, decision, or report about whether a parolee has completed, graduated from, or may be discharged or titrated from sex-offender treatment, including any statement that the parolee has not completed treatment.

"SAN JOAQUIN ACTION" means Newanforbi v. Palacios et al., San Joaquin County Superior Court, in which HOPE was a party.

"STOCKTON SITE" means HOPE's Stockton, California treatment location.

"DOCUMENT" means has the full meaning of Fed. R. Civ. P. 34(a)(1)(A), including electronically stored information (ESI) such as email, text and app-based messages, EHR entries, audit logs, and audio or video recordings.

"COMMUNICATION" means any transmission of information by any means, including email, text or app message (on any device, including a personal device used for work), letter, portal message, and recorded meeting.

"IDENTIFY" means (a) for a person: full name, last known employer, title, and business contact; (b) for a DOCUMENT: type, date, author, recipients, and Bates number if produced.

"RELEVANT PERIOD" means January 1, 2021 to the date of response, unless a request states otherwise.

REQUESTS FOR PRODUCTION OF DOCUMENTS

A. Prior production

REQUEST FOR PRODUCTION NO. 1:

All DOCUMENTS HOPE produced in the SAN JOAQUIN ACTION, including those Bates-numbered HOPE_000001 through HOPE_000542, in the form produced, with any designations.

REQUEST FOR PRODUCTION NO. 2:

HOPE's verified responses, and any amended or supplemental responses, to all written discovery served in the SAN JOAQUIN ACTION.

B. Plaintiff's treatment and CTM records

REQUEST FOR PRODUCTION NO. 3:

PLAINTIFF's complete clinical file, including intake documents, treatment contracts and client service agreements, treatment plans in every version, progress notes, group and individual session notes, attendance records, homework records, polygraph reports and referrals, and any discharge, titration, or completion documents.

REQUEST FOR PRODUCTION NO. 4:

PLAINTIFF's complete electronic health record in native or system-export form, together with the system audit trail showing, for each entry, the author, creation date, and every modification, view, export, or deletion.

REQUEST FOR PRODUCTION NO. 5:

All audio and video recordings of any CTM concerning PLAINTIFF, including the CTMs held on or about August 19, 2025 and February 18, 2026.

REQUEST FOR PRODUCTION NO. 6:

All audio and video recordings of HOPE group sessions attended by PLAINTIFF from June 1, 2025 through September 30, 2025.

REQUEST FOR PRODUCTION NO. 7:

All CTM notes, CTM progress reports, CTM agendas, sign-in sheets, and pre-CTM submissions concerning PLAINTIFF.

REQUEST FOR PRODUCTION NO. 8:

All CDCR Form 3043 documents and CDCR Form 1502-DR inputs concerning PLAINTIFF, including drafts, worksheets, signature pages, transmittals, and records of delivery to PLAINTIFF.

REQUEST FOR PRODUCTION NO. 9:

All titration tracking forms, graduation or completion checklists, Treatment Completion Certificate materials, and records of any upload to a CDCR system (including ARMS) concerning PLAINTIFF.

REQUEST FOR PRODUCTION NO. 10:

All homework packets and preparatory tickets PLAINTIFF submitted, and all logs, chart notations, or records of their assignment, receipt, review, or grading.

REQUEST FOR PRODUCTION NO. 11:

All DOCUMENTS concerning any complaint, grievance, objection, or request by PLAINTIFF, and HOPE's response to each.

REQUEST FOR PRODUCTION NO. 12:

All DOCUMENTS in which any HOPE employee characterizes PLAINTIFF's behavior, attitude, participation, or complaints, including as "disruptive" or a "ringleader."

REQUEST FOR PRODUCTION NO. 13:

All DOCUMENTS concerning PLAINTIFF's work schedule, employment, or requests for schedule changes or telehealth.

C. Communications

REQUEST FOR PRODUCTION NO. 14:

All COMMUNICATIONS between HOPE and CDCR concerning PLAINTIFF, in native form with attachments.

REQUEST FOR PRODUCTION NO. 15:

All COMMUNICATIONS among HOPE personnel (including management or records contractors) concerning PLAINTIFF, including text and app-based messages and messages on personal devices or accounts used for work, and including any archive or journaling mailbox.

REQUEST FOR PRODUCTION NO. 16:

All COMMUNICATIONS sent or received by SMITH concerning PLAINTIFF, the SAN JOAQUIN ACTION, this action, In re Dwyer, or treatment-completion or aftercare policy for parolees.

REQUEST FOR PRODUCTION NO. 17:

All COMMUNICATIONS between HOPE and CDCR from January 1, 2023 to the present concerning treatment-completion, aftercare, titration, or discharge policy for parolees.

D. CDCR relationship (state action)

REQUEST FOR PRODUCTION NO. 18:

Each contract, master agreement, scope of work, statement of work, amendment, and incorporated guideline or exhibit between HOPE and CDCR covering sex-offender treatment services at the STOCKTON SITE in effect at any time during the RELEVANT PERIOD.

REQUEST FOR PRODUCTION NO. 19:

All CDCR directives, memoranda, policy statements, and guidance HOPE received during the RELEVANT PERIOD concerning treatment duration, completion, aftercare, titration, or discharge of parolees, including any received in or about October 2024 and any concerning Cal. Code Regs., tit. 15, section 3574.

REQUEST FOR PRODUCTION NO. 20:

DOCUMENTS sufficient to show each CDCR audit, review, or compliance finding concerning HOPE's sex-offender treatment services at the STOCKTON SITE during the RELEVANT PERIOD.

REQUEST FOR PRODUCTION NO. 21:

DOCUMENTS sufficient to show HOPE's access to, and user accounts in, any CDCR information system (including ARMS) during the RELEVANT PERIOD.

E. Policies, manuals, and training

REQUEST FOR PRODUCTION NO. 22:

Each version of HOPE's Clinical Operational Manual, treatment manual, curricula, graduation or completion criteria, and employee handbook in effect at any time during the RELEVANT PERIOD, with effective dates.

REQUEST FOR PRODUCTION NO. 23:

All addenda, forms, templates, and training-library materials referenced or hyperlinked in any document produced under the preceding request, in native form, wherever hosted (including on shared drives or internal websites maintained by a contractor).

REQUEST FOR PRODUCTION NO. 24:

All DOCUMENTS reflecting the adoption, approval, or announcement of the change to HOPE's treatment-completion or aftercare policy that HOPE contends occurred in or about October 2024, including drafts and staff communications.

REQUEST FOR PRODUCTION NO. 25:

All DOCUMENTS reflecting any policy, practice, or contract term under which HOPE could not discharge, complete, or titrate a parolee client while on parole supervision.

REQUEST FOR PRODUCTION NO. 26:

HOPE's written policy and procedure for responding to client complaints, grievances, and lawsuits in effect at any time from January 1, 2025 to the present.

REQUEST FOR PRODUCTION NO. 27:

All training materials provided to STOCKTON SITE clinical staff during the RELEVANT PERIOD concerning COMPLETION DETERMINATIONS, CTM reporting, or responding to client complaints.

REQUEST FOR PRODUCTION NO. 28:

All DOCUMENTS concerning In re Dwyer, including any notes or materials concerning testimony by any HOPE employee.

F. Comparator data (de-identified)

REQUEST FOR PRODUCTION NO. 29:

DOCUMENTS sufficient to show, for each year from 2021 through 2026 at the STOCKTON SITE, the number of parolee clients enrolled, the number who received a favorable COMPLETION DETERMINATION while on parole, and the number discharged for any other reason, with each client de-identified.

REQUEST FOR PRODUCTION NO. 30:

For each STOCKTON SITE parolee client who received a favorable COMPLETION DETERMINATION while on parole from 2021 through 2026, DOCUMENTS sufficient to show (de-identified) the date of the determination, the treatment phase completed, and the time in treatment.

G. Personnel and discipline

REQUEST FOR PRODUCTION NO. 31:

For Katie Palacios, Bernadette Marie Tassone, Pamela Akins, Dr. Cristina Loree, Kristine Hansen, Dr. Carrie Shinske, and Mark Delucchi: job descriptions, dates of employment and positions, and documents sufficient to show each person's supervisor.

REQUEST FOR PRODUCTION NO. 32:

Any complaints, investigations, discipline, or corrective action concerning Katie Palacios or any clinician assigned to PLAINTIFF that relate to client complaints, retaliation, recordkeeping, or reports to CDCR during the RELEVANT PERIOD.

REQUEST FOR PRODUCTION NO. 33:

DOCUMENTS sufficient to show any component of compensation for the Clinical Director or site director of the STOCKTON SITE during 2021-2026 that was tied to client census, retention, or revenue.

H. Insurance

REQUEST FOR PRODUCTION NO. 34:

Every insurance policy (primary, excess, or umbrella; professional, directors and officers, employment practices, or general liability) under which an insurer may be liable to satisfy all or part of a judgment against HOPE or SMITH in this action, for each policy period covering any part of 2021 to the present, with declarations and endorsements.

REQUEST FOR PRODUCTION NO. 35:

Each notice of claim or tender to any insurer concerning PLAINTIFF's claims, and each reservation-of-rights or coverage-position letter received in response.

I. Retention and ESI

REQUEST FOR PRODUCTION NO. 36:

HOPE's document-retention and destruction policies and schedules in effect during the RELEVANT PERIOD, including those for EHR records, email, text messages, and CTM or group recordings.

REQUEST FOR PRODUCTION NO. 37:

DOCUMENTS sufficient to show the date, scope, and recipients of any litigation hold concerning PLAINTIFF's claims (not the privileged content).

REQUEST FOR PRODUCTION NO. 38:

DOCUMENTS sufficient to show HOPE's agreement with any management, records, or EHR contractor that maintains HOPE's clinical records, email, or policy documents.

J. Defenses

REQUEST FOR PRODUCTION NO. 39:

All DOCUMENTS HOPE contends support its position that it did not act under color of state law.

REQUEST FOR PRODUCTION NO. 40:

All DOCUMENTS HOPE contends support its position that its COMPLETION DETERMINATIONS concerning PLAINTIFF were individualized clinical judgments.

REQUEST FOR PRODUCTION NO. 41:

All DOCUMENTS HOPE identified, or intends to identify, in its Rule 26(a)(1) initial disclosures.

K. Additional requests

REQUEST FOR PRODUCTION NO. 42:

Every progress report, treatment-plan update, or status report concerning PLAINTIFF that HOPE prepared for or transmitted to CDCR from August 1, 2024 to the present, including each report containing the words "fixated on lawsuits."

REQUEST FOR PRODUCTION NO. 43:

Every risk or needs assessment scored for PLAINTIFF (including the Static-99R, STABLE-2007, ACUTE-2007, and LS/CMI), with score sheets, inputs, and any

COMMUNICATION of results to CDCR.

REQUEST FOR PRODUCTION NO. 44:

All DOCUMENTS concerning HOPE's receipt, review, routing, or escalation of the complaint in the SAN JOAQUIN ACTION from December 1, 2025 through January 31, 2026 (privileged communications with counsel to be logged rather than produced).

REQUEST FOR PRODUCTION NO. 45:

Organizational charts, or DOCUMENTS sufficient to identify each person responsible during the RELEVANT PERIOD for treatment-completion policy, CTM reporting, compliance, records management, and complaint handling.

REQUEST FOR PRODUCTION NO. 46:

All DOCUMENTS HOPE prepared, and all COMMUNICATIONS between HOPE and CDCR, from September 1, 2025 through December 31, 2025 concerning PLAINTIFF's treatment status or completion eligibility, including any information HOPE supplied for the CDCR Form 1502-DR concerning PLAINTIFF signed on November 14 and 19, 2025.

Dated: _____, 2026

Respectfully submitted,

_____

BRENDAN NGEHSI NEWANFORBI

Plaintiff, In Propria Persona

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
Plaintiff

Case Number: 3:26-cv-07504-LJC

V.

SHANNON SMITH, LCSW;
HOPE PSYCHOTHERAPY, INC.
Defendants

PROOF OF SERVICE

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I hereby certify that on *(Date)* , I served a copy of the attached

PLAINTIFF'S FIRST SET OF REQUESTS FOR PRODUCTION OF DOCUMENTS TO DEFENDANT HOPE PSYCHOTHERAPY, INC. (d/b/a HOPE PROGRAM),

by transmitting a true copy by electronic mail (PDF attachments) to the e-mail address(es) hereinafter listed:

(List Name and E-mail Address of Each Defendant or Attorney Served)

Cynthia G. Lawrence, Esq. — cynthia@sims-law.net
Blaze Van Dine, Esq. — blaze@sims-law.net
Eric T. Martinez, Esq. — emartinez@sims-law.net
Sims, Lawrence & Broghammer (e-service) — slb-eservice@sims-law.net

Attorneys for Defendants Shannon Smith, LCSW, and
HOPE Psychotherapy, Inc. (d/b/a HOPE Program)

Service by electronic means under Fed. R. Civ. P. 5(b)(2)(E),
pursuant to the written consent of counsel for Defendants.

UNITED STATES DISTRICT COURT
NORTHERN DISTRICT OF CALIFORNIA

BRENDAN NGEHSI NEWANFORBI
v.
SHANNON SMITH, LCSW et al.

Case Number: 3:26-cv-07504-LJC
PROOF OF SERVICE
(continued)

The names and addresses of the persons served appear on page 1.

I declare under penalty of perjury that the foregoing is true and correct.

_____

Brendan Ngehsi Newanforbi, In Propria Persona